

Court No. - 37

Case :- WRIT - C No. - 34211 of 2017

Petitioner :- Mulayam Singh

Respondent :- U.P. Power Corporation, Lucknow And 2 Others

Counsel for Petitioner :- Anil Kumar, Sant Kumar Mishra

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department.

The petitioner had earlier come up questioning the electricity dues in Writ C No.1896 of 2017 that was disposed of on 16.01.2017 by the following order :

"The petitioner is aggrieved by the communication sent by the Executive Engineer concerned to the Collector, Etah for recovery of an amount of Rs.1,18,860/- towards the arrears of electricity dues.

The petitioner has brought on record the earlier communication dated 12 July 2016 sent by the Executive Engineer concerned to the deceased grand-mother of the petitioner for deposit of Rs.1,18,860/-. The communication also mentions that in case there is any dispute with regard to the amount mentioned in the communication, the person can contact the officers of the Department at the earliest.

There is nothing on the record to indicate that the petitioner has ever made any effort to contact the officers of the Department for redressal of grievances.

Learned counsel for the petitioner, however, states that the petitioner shall now file a representation before the concerned Executive Engineer to raise all such dispute as have been raised in this petition.

The Court, therefore, declines to entertain this petition. It is, accordingly, dismissed"

Since there was no time fixed for disposal of the claim of the petitioner as stated by the petitioner he filed another Writ Petition No.13844 of 2017, which was disposed of with a direction to the Executive Engineer to consider and decide the representation dated 23.01.2017. The said order is extracted hereinunder :

"Heard learned counsel for the petitioner.

Sole grievance of the petitioner is that though in pursuance of the order dated 16.01.2017 passed by this Court on Writ Petition No. 1896 of 2017 filed by him, a representation has been made by him raising dispute in respect of arrears of electricity dues, but the Executive Engineer has not taken any decision on the same.

Shri Baleshwar Chaturvedi, learned counsel appearing for the respondent-Corporation fairly states that, in case, any such

representation has been made, the concerned authority shall proceed to decide the same expeditiously, preferably within a period of three weeks from today.

In view of the aforesaid statement made by Shri Baleshwar Chaturvedi, writ petition stands disposed of by directing respondent no. 3, Executive Engineer, Electricity Distribution Division, Etah to consider and decide the representation dated 23.01.2017 filed as Annexure 8 to the writ petition within a period of three weeks from the date of production of a certified copy of this order."

This is the third writ petition, which has been filed practically assailing the same issue relating to the electricity billing of the petitioner.

All billing disputes are to be decided by the Executive Engineer keeping in view the provisions of 6.5 of U.P. Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005"). If the petitioner is aggrieved by it, it is open to him to file an appeal or approach the forum, namely the Consumer Grievances Redressal Forum in terms of 7.10 of Code, 2005.

In such circumstances, where the very factum of consumption and billing is being disputed it is open to the petitioner to avail of the aforesaid remedies.

In the event the petitioner without disputing the quantum proposes to deposit the amount, it is open to him to approach the Executive Engineer for fixing installments in terms of 6.14 of the Code, 2005.

Writ petition is disposed of with these directions.

Order Date :- 2.8.2017

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